SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 1010 of 2017 (YEAR: 2018)

CORAM: DIPAK MISRA, A.K. SIKRI, A.M. KHANWILKAR, D.Y. CHANDRACHUD, ASHOK BHUSHAN

Common Cause (A Regd. Society)
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 21

JUDICIAL HEADNOTE & SUMMARY

Recognized right to die with dignity as part of Article 21, validating living wills and passive euthanasia for terminally ill patients in permanent vegetative states.

RATIO DECIDENDI

The Court held that: Recognized right to die with dignity as part of Article 21, validating living wills and passive euthanasia for terminally ill patients in permanent vegetative states. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Common Cause (A Regd. Society) v. Union of India (Writ Petition (Civil) No. 1010 of 2017) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 21. Recognized right to die with dignity as part of Article 21, validating living wills and passive euthanasia for terminally ill patients in permanent vegetative states.

OPERATIVE ORDER

ORDER: Decided